

BEFORE Placeholder

AFTER

Contract Clauses — Offboarding, Data Return & Deletion (Template Library)

Document classification: Internal template (for contracts)

Template owner: Legal Counsel (terms) / DPO/Privacy Officer (privacy) / Security Engineering (security)

Version: 0.1

Effective date: _____

Note: Select clauses proportionate to supplier tier and service scope. Use generic role titles and align to the program offboarding checklist and data retention policy.

A) Termination assistance and exit support (Critical recommended)

A1 — Exit assistance Supplier shall provide reasonable exit assistance to support transition to a replacement supplier or internal service, including cooperation, knowledge transfer, and technical support, for a period of [] days following termination/expiry, at rates agreed in the Agreement (or as otherwise agreed in writing).

A2 — Continuity during transition (where applicable) Where the Services support a critical business service, Supplier shall use reasonable efforts to maintain service continuity during an agreed transition period, subject to timely payment of undisputed fees.

B) Access removal and deprovisioning (Critical/Important)

B1 — Removal of Supplier access Upon termination/expiry (or earlier upon Customer request where justified), Supplier shall promptly remove all Supplier personnel access to Customer systems, environments, and accounts provided in connection with the Services, including administrative and privileged access.

B2 — Removal of integration access Supplier shall promptly revoke/disable any credentials, tokens, certificates, service accounts, API keys, and integration identities used to connect to Customer systems and shall cooperate with Customer-led credential rotation where required.

B3 — Verification Supplier shall, upon request, provide written confirmation that access removal and credential revocation has been completed for the in-scope Services.

C) Data return (where data is stored/processed)

C1 — Return of Customer data Upon termination/expiry, and on Customer request, Supplier shall return Customer data in a commonly used, machine-readable format within [] days, to the extent applicable to the Services.

C2 — Return scope Customer data returned shall include, as applicable:

- primary content/data stored by the service,
- configuration and administrative metadata required for continuity,
- audit/security logs relating to Customer scope (subject to retention requirements),
- any other data identified in the Agreement/SOW as returnable.

C3 — Secure transfer Data return shall be performed via secure transfer methods agreed by the parties.

D) Data deletion and destruction (Critical/Important; privacy-led where personal data)

D1 — Deletion obligation Upon termination/expiry, Supplier shall securely delete Customer data from systems used to provide the Services, including copies held by sub-processors, except to the extent retention is required by applicable law or expressly agreed in writing.

D2 — Deletion timeframe Supplier shall complete deletion within [] days of termination/expiry (or completion of data return), unless otherwise agreed.

D3 — Deletion from backups Supplier shall delete Customer data from backups in accordance with Supplier's backup lifecycle, not to exceed [] days, and shall ensure backups are protected from unauthorised access until deletion occurs.

D4 — Deletion certificate / confirmation Supplier shall provide written confirmation of deletion/destruction upon request, including:

- deletion date(s),
- systems/locations covered (high level),
- whether deletion includes sub-processors (where applicable),
- any retained data and legal basis for retention.

D5 — Retained data Where Supplier retains any Customer data due to legal obligation:

- Supplier shall notify Customer of the categories of retained data and retention period (if known),
- retained data shall remain subject to confidentiality and security obligations,
- Supplier shall delete retained data as soon as legally permissible.

E) Sub-processor offboarding (flow-down)

E1 — Flow-down obligation Supplier shall ensure that equivalent data return and deletion obligations apply to sub-processors and shall provide confirmation, on request, that sub-processors have complied.

F) Logs and audit records (security assurance)

F1 — Log retention at termination Supplier shall retain and make available audit/security logs relating to Customer scope for [] months following termination/expiry (or as otherwise agreed), to support investigations or audit requirements.

F2 — Access to logs Supplier shall provide relevant logs upon request within a reasonable timeframe, subject to confidentiality restrictions.

G) Secure disposal of Customer-provided assets

G1 — Asset disposal Where Supplier possesses Customer-provided physical assets, removable media, or hardware, Supplier shall return them on request or securely dispose of them using industry-standard secure disposal methods and provide confirmation.

H) Survival and precedence

H1 — Survival Offboarding, confidentiality, data protection, and security obligations in this section survive termination/expiry to the extent necessary to give effect to the return/deletion/retention obligations.

I) Tier-specific clause guidance (selection)

Critical (Tier 1) minimum set (recommended):

- B1, B2, B3
- C1–C3 (if data stored)
- D1–D5 (if any data stored/processed)
- E1 (if sub-processors used)

- F1–F2 (where auditability required)
- A1–A2 if critical service dependency

Important (Tier 2) minimum set (recommended):

- B1–B3
- C1–C3 (if data stored)
- D1–D4 (if data stored/processed)
- E1 (if sub-processors used)

Low (Tier 3) minimum set (proportionate):

- B1 (where Supplier had any access)
- D1–D2 (if Supplier stored any Customer data), or a simplified deletion confirmation clause